

Rishikesh Madi Tripathi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 18 March 2025 · 2025:AHC:38474-DB · WRIT - C No. - 6101 of 2025 · **Writ disposed; petitioner directed to file Clause 6.5 objection**

HEADNOTE

A consumer's writ seeking restoration of a 2 KW sanctioned meter load, correction of the outstanding bill, and installment payment is disposed of by directing him to file an application/objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If filed within two weeks, the authority shall decide it within six weeks after hearing.

FACTUAL SUMMARY

The petitioner, a consumer of Purvanchal Vidyut Vitran Nigam Limited at Gorakhpur, sought a mandamus directing the Executive Engineer, Electricity Urban Distribution Division, Taramandal, to restore and correct his electricity meter to the originally sanctioned load of 2 KW, recalculate the outstanding bill, and allow him to deposit the dues in easy installments. After notice and dasti service on 3 March 2025, the Division Bench heard both sides on 18 March 2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection under clause 6.5

HOLDING

The writ is disposed of by directing the petitioner to file an application/objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005; if filed within two weeks, the authority concerned shall decide it within six weeks of filing after granting the petitioner an opportunity of hearing. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER SHOULD BE RESTORED TO THE ORIGINALLY SANCTIONED 2 KW LOAD, THE OUTSTANDING BILL RECALCULATED, AND DUES ALLOWED IN INSTALLMENTS

Left to the Clause 6.5 authority ¶ 2-3